

Interpretation of the Electricity Act, 2003

Statutory construction across the judgments, grouped by provision

Every interpretation of a statutory provision drawn from the judgments, grouped by the provision construed. Identical readings are stated once with all contributing cases tagged; distinct readings appear separately. Provisions are ordered Section 2(15) → 135(1)(a) → third proviso → 150 → 154(5) → DERC Regs 60–63.

SECTION 2(15) — “CONSUMER”

The Court read “consumer” to embrace both the person actually using the electricity and the owner/registered consumer of the connected premises. A registered consumer stays answerable for illegal abstraction found at the premises even where another person is the user (*Lokesh Chandela*).

‘Consumer’ covers both the person actually using the electricity and the owner/registered consumer of the connected premises; a registered consumer cannot disown liability for illegal abstraction found at her premises merely because another (her son) was the user (*Lokesh Chandela* followed).

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

SECTION 135(1)(A) — THEFT OF ELECTRICITY

Across the set the charge was confined to clause (a) — a dishonest tap on, or connection with, the licensee’s lines, cables, service wires or service facilities — the cases being direct hooking rather than meter tampering (clauses (b)–(e)). “Dishonestly”, undefined in the Act, is supplied by Section 24 IPC (wrongful gain to one / wrongful loss to another). The unauthorised connection took many forms — pole hooks, distribution-box and street-light-box taps, punctured service cables, and change-over switches past stopped meters — each treated as satisfying clause (a).

Clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — is the operative limb in a direct-hooking case (clauses (b)–(e) needing a metering/tampering foundation). ‘Dishonestly’ being undefined in the Act, Section 24 IPC supplies the definition (wrongful gain to one person or wrongful loss to another); drawing supply through an unmetered illegal Teflon-wire tap satisfies dishonest intention.

001 Gaffar Miya

Clause (a) — tapping or making a connection with a licensee’s lines — is the operative limb in a direct-hooking case. ‘Dishonestly’ being undefined in the Act, Section 24 IPC supplies the definition (wrongful gain/wrongful loss); drawing supply through an unmetered illegal Teflon-wire tap from the input terminal of another consumer’s meter satisfies dishonest intention.

002 Sattar Miya

003 Gaffar Miya

Direct tapping of the licensee’s AB conductor through insulated wires routed via a concealed change-over switch — enabling supply to be flipped between a stopped meter and the stolen feed — is direct theft; the hidden switch, stopped meter and absence of any Genset explanation evidence the dishonest design (s.24 IPC standard).

004 Momin & Anr.

Drawing supply through an illegal wire connected into the supply cable while the installed meter lies stopped — the service cable tampered so consumption bypasses registration — is direct theft; the stopped meter, tampered cable and absence of any lawful-source explanation evidence the dishonest design (s.24 IPC standard).

005 Mohd. Riyaz & Anr.

Hooking a cable directly onto the licensee's pole to feed premises with no meter of their own is the paradigm clause (a) offence; 'dishonestly' takes its s.24 IPC meaning — unmetered floors, the pole-to-premises cable and no lawful-source explanation satisfied it.

006 Mohd. Riyaz

Only clause (a) engaged; four ingredients enumerated: (i) dishonest intention (s.24 IPC — wrongful gain/wrongful loss); (ii) tapping or causing a connection with the licensee's lines/cables/service facilities; (iii) the accused being the user or consumer of the abstracted electricity; (iv) punishability with imprisonment up to 3 years, fine or both. Direct tapping from an LT Network Distribution Box to run an unmetered jhuggi's load satisfies all.

007 Devi Prasan

Hooking wires from the licensee's pole (YVR J081) to unmetered premises is a clause (a) connection. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

008 Ravinder

Puncturing the licensee's service cable at the pole and drawing supply through a wire so connected is a clause (a) tap — a connection at the pole-head or box is not required. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

009 Yasmeen

A wire run from the distribution box of the licensee's street-light network to unmetered premises is a clause (a) connection with the licensee's service facilities. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

010 Tilak Raj

A two-core wire connected from the licensee's distribution box to unmetered premises is a clause (a) connection. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

011 Altaf

Piercing the licensee's pole-mounted service cable to draw supply to unmetered premises is a clause (a) tap; Section 138 was reproduced but only s.135(1)(a) applied. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

012 Shehzad & Anr.

Tapping the street-light point on the licensee's pole to feed unmetered premises is a clause (a) connection with the licensee's service facilities. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

013 Gyatri Devi

017 Atul

A long cable hooked from the licensee's pole to run scrap work at unmetered premises is a clause (a) connection with the licensee's lines. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

014 Mustak Hussain

Illegal tapping from the licensee's distribution box to unmetered premises is a clause (a) connection; where the occupant obstructs and removes the wires, the tap and load may still be proved by the officials' testimony, the videographed proceedings and the load taken on the accused's own disclosure. 'Dishonestly' takes its s.24 IPC meaning.

015 Laxmi Mishra

A cable hooked from the licensee's pole-mounted distribution box to unmetered mixed shop-and-home premises is a clause (a) connection with the licensee's works. 'Dishonestly' takes its s.24 IPC meaning (wrongful gain/wrongful loss).

016 Shimla

A wire hooked from the licensee's pole to unmetered premises powering a GSM antenna (telecom) tower is a clause (a) connection; partial seizure of the tapping wire (part out of reach) is not fatal — seizure is only corroborative where the theft is videographed. 'Dishonestly' takes its s.24 IPC meaning.

018 Imran

THIRD PROVISO TO SECTION 135(1) — PRESUMPTION OF DISHONEST USE

A reverse-onus clause. On proof of an artificial or unauthorised means of abstraction, dishonest use is presumed “until the contrary is proved.” Read with *Neeraj Dutt* (“shall presume” is compulsory) and *Hiten P. Dalal* (rebuttal on the prudent-man standard), the burden shifts to the accused, the natural rebuttal being proof of lawful metered use — paid bills — under the Section 106 Evidence Act onus (*Mukesh Rastogi*). It was not rebutted in any case in this set.

A reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use 'until the contrary is proved'. 'Shall presume' is a compulsory presumption (*Neeraj Dutt*); the accused must adduce evidence making his defence reasonably probable to a prudent man (*Hiten P. Dalal*); the natural rebuttal is proof of a lawful, metered source, typically paid bills, the onus lying on the consumer under Section 106 Evidence Act (*Mukesh Rastogi*).

001 Gaffar Miya

006 Mohd. Riyaz

Reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use 'until the contrary is proved'. 'Shall presume' is compulsory (*Neeraj Dutt*); rebuttal standard is evidence making the defence reasonably probable to a prudent man (*Hiten P. Dalal*); natural rebuttal is proof of lawful metered use — paid bills — the onus lying on the consumer under Section 106 Evidence Act (*Mukesh Rastogi*).

002 Sattar Miya

003 Gaffar Miya

The compulsory presumption arises on proof of an artificial/unauthorised means and operates against the user AND the registered consumer alike; each must rebut on the prudent-man standard, the natural mode being proof of lawful metered use (paid bills; s.106 Evidence Act onus).

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

On proof of an artificial/unauthorised means of abstraction, dishonest abstraction is presumed until the contrary is proved. Read in tandem with Section 106 Evidence Act (facts especially within a person's knowledge): the occupant must explain the source running his appliances by cogent and credible evidence; bald defence or a relative's unsubstantiated testimony does not discharge the onus.

007 Devi Prasan

Reverse-onus clause: proof of an artificial/unauthorised means raises a compulsory presumption of dishonest use (*Neeraj Dutt*) rebuttable on the prudent-man standard (*Hiten P. Dalal*); natural rebuttal is paid bills / lawful metered use, the s.106 Evidence Act onus lying on the consumer (*Mukesh Rastogi*).

008 Ravinder

009 Yasmeen

010 Tilak Raj

011 Altaf

Reverse-onus clause: proof of an artificial/unauthorised means raises a compulsory presumption of dishonest use (*Neeraj Dutt*) rebuttable on the prudent-man standard (*Hiten P. Dalal*); natural rebuttal is paid bills / lawful metered use, the s.106 Evidence Act onus on the consumer (*Mukesh Rastogi*).

012 Shehzad & Anr.

013 Gyatri Devi

014 Mustak Hussain

016 Shimla

017 Atul

Compulsory presumption on proof of an unauthorised means (*Neeraj Dutt*); rebuttal on the prudent-man standard (*Hiten P. Dalal*). A bare, unproved plea (here, solar power) cannot rebut it; only proof of lawful metered use / paid bills discharges the s.106 onus (*Mukesh Rastogi*).

015 Laxmi Mishra

Reverse-onus clause: proof of an unauthorised means raises a compulsory presumption (Neeraj Dutt) rebuttable on the prudent-man standard (Hiten P. Dalal); natural rebuttal is paid bills / lawful metered use (s.106; Mukesh Rastogi).

018 Imran

SECTION 150 — ABETMENT

Abetment carries the punishment of the principal offence. A registered consumer who, knowing the meter is stopped, permits or consciously allows the user to draw an unauthorised supply abets the theft and is convicted under Section 135 read with Section 150.

A registered consumer who, knowing her meter is lying stopped, permits or consciously allows the user to draw supply through an unauthorised connection abets the theft; under s.150(1) the abettor incurs the same punishment as the principal offence, notwithstanding anything in the IPC.

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

SECTION 154(5) — CIVIL LIABILITY

On conviction the Special Court may additionally fix civil liability for the electricity illegally used; the criminal conviction and the civil recovery are companion outcomes of the same trial.

On conviction the Special Court may additionally fix civil liability for the electricity illegally used; conviction and civil recovery are companion outcomes, the liability to be determined at the sentencing stage.

007 Devi Prasan

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

Reproduced in every judgment as the procedural backbone: the inspection power with photo-ID safeguards (Reg. 60); the contemporaneous site report with seizure, sealing and photo/video documentation, including recording any refusal of locals to witness (Reg. 61); the prosecution procedure, the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62); and assessment at twice the applicable tariff for up to twelve months with credit for units paid (Reg. 63). Unchallenged compliance was treated as confirming the inspection's regularity.

Reg. 60: Authorised Officer may inspect suo motu or on information, carrying/showing photo ID. Reg. 61: contemporaneous site inspection report with seizure, sealing and photo/video documentation. Reg. 62: prosecution only where dishonest intention is evident; disconnection plus written police complaint within 24 hours; missing meter seal alone cannot found a theft case absent corroboration. Reg. 63: assessment at twice applicable tariff for up to 12 months with credit for units paid. Unchallenged compliance with Regs. 60-63 confirms the inspection's regularity; the assessment measures the theft and need not be separately proved as an ingredient.

001 Gaffar Miya

006 Mohd. Riyaz

Reg. 60: inspection power (suo motu or on information) with photo-ID safeguards. Reg. 61: contemporaneous inspection report, seizure/sealing, photo/video documentation. Reg. 62: prosecution only where dishonest intention evident; disconnection + police complaint within 24 hours; missing seal alone insufficient. Reg. 63: assessment at twice tariff for up to 12 months with credit for paid units. Unchallenged compliance confirms regularity of inspection.

002 Sattar Miya

003 Gaffar Miya

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, video documentation (61); prosecution only where dishonest intention evident, disconnection + police complaint within 24 hours, missing seal alone insufficient (62); assessment at twice tariff for up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity.

004 Momin & Anr.

005 Mohd. Riyaz & Anr.

Inspection power with ID safeguards (60); contemporaneous report with seizure/sealing and photo/video documentation (61) — including recording a refusal of locals to join, which excuses the absence of a public witness; prosecution procedure with 24-hour police complaint (62); assessment at twice tariff up to 12 months (63).

007 Devi Prasan

Inspection power with photo-ID safeguards (60); contemporaneous report with seizure/sealing and photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 1,73,901 assessment measures the theft.

008 Ravinder

Inspection power with photo-ID safeguards (60); contemporaneous report with seizure/sealing and photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 48,794 assessment measures the theft.

009 Yasmeen

Inspection power with photo-ID safeguards (60); contemporaneous report with seizure/sealing and photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 1,73,506 assessment measures the theft.

010 Tilak Raj

Inspection power with photo-ID safeguards (60); contemporaneous report with seizure/sealing and photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 50,979 assessment measures the theft.

011 Altaf

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 62,109 assessment measures the theft.

012 Shehzad & Anr.

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 78,428 assessment measures the theft.

013 Gyatri Devi

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 72,006 assessment measures the theft.

014 Mustak Hussain

Inspection power and ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61) — seizure could not be completed because the accused removed the wires, but the inspection remained valid; prosecution procedure (62); assessment at twice tariff (63). No procedural lapse suggested.

015 Laxmi Mishra

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 51,607 assessment measures the theft.

016 Shimla

Inspection power with photo-ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61); prosecution only where dishonest intention evident + 24-hour police complaint + missing-seal caution (62); assessment at twice tariff up to 12 months with credit for paid units (63). Unchallenged compliance confirms regularity; the Rs. 86,825 assessment measures the theft.

017 Atul

Inspection power/ID safeguards (60); contemporaneous report, seizure/sealing, photo/video documentation (61) — seizing the accessible segment of the wire suffices where the rest is out of reach; prosecution procedure (62); assessment at twice the applicable (here commercial) tariff up to 12 months (63) — producing the Rs. 11,61,828 telecom-load bill.

018 Imran

Compilation digest generated from the per-case summaries of Cases 001–018. It collates the courts' own reasoning for cross-referencing and is not a substitute for the full judgments.